

CV-25-011530 DIAZ, KIMBERLY vs BLYTHE, HOLLY YVETTE – Plaintiff's Motion to Compel Further Responses to Special Interrogatories from Defendant Holly Yvette Blythe – GRANTED, in part, as follows:

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2026-08-03

Motion: Preliminarily, the Court notes that while submitted as a single motion, the papers herein seek 3 separate orders concerning 3 separate discovery devices: Special Interrogatories, Set One to Defendant Holly Yvette Blythe; Special Interrogatories, Set Two to Defendant Holly Yvette Blythe; and Deposition Subpoena for Production of Business Records directed to non-party In-N-Out Burgers. Such combined motions are disfavored. In this instance, the Court finds that the issues presented with regard to the 2 sets of special interrogatories are sufficiently interrelated as to justify hearing concurrently in the interest of judicial economy, and for that reason the Court will consider those issues together herein. As to the remaining request for an order concerning the non-party deposition subpoena for business records, the Court declines to consider that issue in this context. With regard to the issues raised herein with regard to Defendant Holly Yvette Blythe's responses to Special Interrogatories, Sets One and Two, the Court notes the parties' agreement that the responses were untimely served. Therefore, objections were waived. (Code Civ. Proc. § 2030.290(a).) On that basis, the assertion of objections and provision of responsive information subject to the same in Defendant's responses were without merit, entitling Plaintiff to an order compelling service of further responses, without objection. (Code Civ. Proc. § 2030.300(a)(3).) Defendant's further responses to Special Interrogatories, One and Two, shall be provided within 14 days. The Court further finds that Plaintiff is entitled to an award of monetary sanctions in connection with the instant motion. In that regard, the Court awards \$675 in sanctions against defense counsel, payable to Plaintiff's counsel. (Code Civ. Proc. §§ 2030.300(c); 2023.010, 2023.030, et seq.)

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